

25PSCV00759 25PSCV00759

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-21

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C07%2F21%2F2026

Source SHA-256: fafc9433786a514578276acbfa106d18d8da676775950474f08b04b5461813cc

Case Number: 25PSCV00759 Hearing Date: July 21, 2026 Dept: H

Scothorn v. FCA US

LLC, Case No. 25PSCV00759

ORDER ON MOTION

TO ENFORCE SETTLEMENT

Background

Plaintiff

James Pedro Scotthorn ("Plaintiff")

alleges as follows:

On February 21, 2024, Plaintiff

leased a new 2023 Dodge Ram 1500, VIN No. 1C6SRFFT9PN685915 ("subject vehicle"). Plaintiff alleges that the subject vehicle suffers from various defects including, but not limited to, transmission delays, flickering warning lights on the dashboard, and a faulty radio system, and that the subject vehicle has not been repaired after a reasonable number of attempts.

On March 5, 2025, Plaintiff filed a complaint,

asserting causes of action against FCA US LLC ("FCA"), Knight Claremont Chrysler Dodge Jeep Ram and Does 1-50 for: (1) Violation of Song-Beverly Act—Breach of Express Warranty, (2) Violation of Song-Beverly Act—Breach of Implied Warranty, (3) Violation of the Song-Beverly Act Section 1793.2(b), and (4) Violation of Civil Code Section 1796.5.

On November 4, 2025, Plaintiff filed a conditional

"Notice of Settlement of Entire Case."

On March 26, 2026, the Court ordered Plaintiff's complaint dismissed without prejudice, pursuant to an oral request made by Defendants' counsel, with the Court retaining jurisdiction.

Legal Standard

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement . . ." (Code Civ. Proc., 664.6, subd. (a).)

"For purposes of this section, a writing is signed by a party if it is signed by any of the following:

- (1) The party.
- (2) An attorney who represents the party. . ." (Code Civ. Proc., 664.6, subd. (b).)

Discussion

Plaintiff

moves the Court, per Code of Civil Procedure section 664.6, for an order enforcing the terms of the Offer to Compromise by entering judgment in his favor and against FCA in the amount of \$83,000.00, and a separate award of attorney's fees in the amount of \$3,150.00 for time expended in connection with this instant motion.

On

March 9, 2026, Plaintiff accepted, signed and returned FCA's Offer to Compromise ("Section 998 Offer") in the amount of \$83,000.00 in exchange for the repurchase of Plaintiff's 2023 Dodge Ram 1500, VIN 1C6SRFFT9PN685915 ("subject vehicle"). (Urner Decl., ¶ 2, Exh. A). The Section 998 Offer provided, in relevant part, as follows:

"It is an express condition of this Offer that, if accepted, Defendant will perform its obligations within 90 days of acceptance and Plaintiff providing the items in section 1 (b-d) above, on a mutually agreeable date and location with Plaintiffs returning the Subject Vehicle, and on that same date executing

all required California Department of Motor Vehicle forms, including but not limited to, DMV Form 262, necessary to transfer title of the Subject Vehicle to FCA, or its representatives, free and clear of all liens and encumbrances. The Subject Vehicle will be returned with no substantial equipment missing, and with no unrepaired collision damages and/or intentionally inflicted damage except for any previously alleged defect(s). No interest will accrue.”

(Urner
Decl., ¶ 2, Exh. A [emphasis added].)

The
Section 998 Offer further contained a section 664.6 enforcement clause. (Id.)

Plaintiff
represents that FCA has not performed any of the required obligations to resolve this case. (Id., ¶ 3.) Plaintiff, however, fails to advise whether or not he has provided the items in section (1)(b)-(d) of the Section 998 Offer (i.e., including “[a] legible copy of the Bill of Sale/Retail Installment Contract/Lease agreement for the Subject Vehicle,” “[a] legible copy of the current registration, payoff letter from the lienholder, and payment history, if a lienholder exists” and “[t]he lienholder account number, per diem amount, payoff due date and payoff amount for the lienholder; or a front and back legible copy of the title should no lienholder exist”).

A
review of Exhibit B attached to Urner's declaration suggests that at least some of this documentation was not provided to FCA's counsel until June 8, 2026. Under the circumstances, then, the instant motion appears to be prematurely brought. The Court will hear further from the parties at the time of the hearing in this regard.